

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Eric Rigie	Team: Squad #03	CCRB Case #: 201606313	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 07/07/2016 4:55 PM	Location of Incident: In front of 262 Canal Street	18 Mo. SOL 1/7/2018	Precinct: 05		
Date/Time CV Reported Thu, 07/21/2016 3:14 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Thu, 07/21/2016 3:14 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Franklin	26479	945732	005 PCT
2. POM Raphael Jefferson	13443	949139	005 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM James Franklin	Abuse: Police Officer James Franklin questioned § 87(2)(b)	A . Unsubstantiated
B . POM James Franklin	Abuse: Police Officer James Franklin issued a summons to § 87(2)(b)	B . Substantiated
C . POM James Franklin	Abuse: Police Officer James Franklin threatened to arrest § 87(2)(b)	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On July 21, 2016, § 87(2)(b) filed this complaint in person at the CCRB.

On July 7, 2016, at approximately 4:55 p.m., § 87(2)(b) a street vendor, was inside a McDonald's at 262 Canal Street in Manhattan. PO James Franklin and PO Ralphael Jefferson, of the 5th Precinct, went into the McDonald's where PO Franklin asked § 87(2)(b) what he was doing and if he had a legitimate reason for being in there (**Allegation A**). § 87(2)(b) told PO Franklin that he did not want to speak to the officer and exited the McDonald's. PO Franklin and PO Jefferson followed § 87(2)(b) out of the McDonald's where § 87(2)(b) cursed at PO Franklin and yelled that he did not want to talk to him. PO Franklin then decided to issue § 87(2)(b) a C-summons for disorderly conduct and so he and PO Jefferson escorted § 87(2)(b) to the corner of Canal Street and Lafayette Street (**Allegation B**). PO Franklin wrote § 87(2)(b)'s C-summons and tried to speak with him. § 87(2)(b) told PO Franklin again that he did not want to talk to him and PO Franklin allegedly said that if § 87(2)(b) kept talking, he would be arrested (**Allegation C**). PO Franklin handed § 87(2)(b) the C-summons and the officers left the scene.

On September 19, 2016, security footage was received from the TD Bank located at 254 Canal Street. A Snagit clip of the relevant footage is attached below.



201606313_20160919_1248_DM.mp4

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation due to § 87(2)(b) actively planning a lawsuit.
- On September 1, 2016 a FOIL request to the Office of the Comptroller confirmed that no Notices of Claim were filed by § 87(2)(b) for this incident (01 Board Review).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint. [§ 87(2)(b), § 87(2)(g)]

[REDACTED]

- PO Franklin has been a member of the NYPD for 8 years and has two previous CCRB cases involving three allegations and no substantiated allegations. § 87(2)(g)
- PO Jefferson has been a member of the NYPD for six years and has three previous CCRB cases involving seven allegations and no substantiated allegations. One case, CCRB# 201605385 is pending board review and includes an allegation of a question directed at a possible street vendor. § 87(2)(g)

Findings and Recommendations

Allegations Not Pleaded

- Although PO Franklin said that PO Jefferson also questioned § 87(2)(b) PO Jefferson did not corroborate this and § 87(2)(b) never alleged that PO Jefferson questioned him. § 87(2)(g)
- § 87(2)(g)
- Although PO Franklin said that he and PO Jefferson threatened to arrest § 87(2)(b) and PO Jefferson said that he or PO Franklin could have, § 87(2)(b) never alleged that PO Jefferson threatened to arrest him. § 87(2)(g)
- PO Jefferson said he told § 87(2)(b) that if he kept cursing, he could be issued a summons. However, § 87(2)(b) never made this allegation. § 87(2)(g)

Allegation A –Abuse of Authority: Police Officer James Franklin questioned § 87(2)(b)

§ 87(2)(b) said he entered the McDonald’s and went to the second floor to use the bathroom, after which he came back downstairs. As he was exiting the McDonald’s, § 87(2)(b) observed PO Franklin and PO Jefferson entering. § 87(2)(b) had numerous negative interactions with PO Franklin going back several years, including being arrested and summonsed by him. PO Franklin recognized § 87(2)(b) and greeted him by saying, § 87(2)(b) Hi!” § 87(2)(b) replied, “Don’t talk to me” and left the McDonald’s (04 Board Review).

§ 87(2)(b) said that he has had issues with vendors operating within his McDonald’s in the past. § 87(2)(b) explained that vendors would come in and try to sell various items or operate right outside his location. § 87(2)(b) observed a couple of vendors get summonsed by officers for vending within his location. § 87(2)(b) believed that the police have officers come in to look for this activity, but he never asked the police to have officers patrol within the location and the vendors never caused any other incidents, such as fighting, that police had to be called for. § 87(2)(b) has spoken to specific officers about the vendors, not to complain, but just making general observations that there were a lot of vendors on the street outside his location. § 87(2)(b) never asked any officer to patrol within the location. § 87(2)(b) had these conversations approximately a month ago (07 Board Review).

PO Franklin said that he and PO Jefferson observed § 87(2)(b) speaking with several unknown individuals outside of the McDonald's and then walking into the McDonald's with those individuals. PO Franklin knew § 87(2)(b) to engage in illegal street vending and had several previous interactions with him including arrests. PO Franklin was not sure how many times he interacted with § 87(2)(b) in the past, because he saw him infrequently. PO Franklin's history with § 87(2)(b) combined with seeing him speaking to individuals outside the McDonald's and then walking in together led PO Franklin to suspect that § 87(2)(b) might be selling illegal goods inside the McDonald's. PO Franklin explained that the McDonald's was a problem location where street vendors often brought customers to sell illegal goods. PO Franklin knew this because the McDonald's was within the area covered by his foot post. No one at the McDonald's called PO Franklin there on the date of the incident, but he decided to go inside with PO Jefferson to check for any problems inside. PO Franklin did not observe § 87(2)(b) speak with any of the other individuals inside the McDonald's and did not see § 87(2)(b) holding any items that he might have been selling. § 87(2)(b) was not doing anything inside the McDonald's that would have allowed him to be issued a summons for illegal vending. On the first floor of the McDonald's mid-way between the front entrance and the area where the food was served, PO Franklin asked § 87(2)(b) whether he had any legitimate reason for being inside the McDonald's and commented that he did not appear to (05 Board Review).

PO Jefferson confirmed that § 87(2)(b) engaged in conversation with unknown individuals outside of the McDonald's and then walked inside with them. PO Jefferson confirmed that § 87(2)(b) was an illegal vendor and added that he sold counterfeit handbags. PO Jefferson has previously issued § 87(2)(b) C-summonses for fighting and illegal vending and knew that PO Franklin arrested § 87(2)(b) in the past. PO Jefferson also confirmed that § 87(2)(b) had been arrested for illegal vending by other officers. PO Jefferson did not remember if § 87(2)(b) was carrying any items with him, but said that he usually did not. PO Jefferson explained that the procedure for illegal vendors is to show prospective clients pictures of the items they're selling on their phone or in a photo book, which is not illegal unless an officer hears them offer the item for sale and mention a price. If the buyer agrees to purchase the item, they will call a second individual to bring the purchased item to the McDonald's. The sellers utilize the McDonald's to avoid being observed by patrolling officers such as PO Jefferson, and then leave once the exchange is made. These transactions take place frequently inside the McDonald's and the illegal vendors sometimes engage in fighting and other problematic behavior. § 87(2)(f)

§ 87(2)(b) PO Jefferson has been directed by his immediate supervisor to make these visits. § 87(2)(f)

§ 87(2)(b) PO Jefferson and PO Franklin entered the McDonald's with the original intention of going into McDonald's to observe § 87(2)(b) but PO Jefferson was not planning on speaking to him. PO Jefferson said that § 87(2)(b) immediately observed PO Jefferson and PO Franklin enter and began cursing at them before they could say anything. PO Jefferson did not remember whether § 87(2)(b) was standing near the individuals he previously observed while inside the McDonald's and could not hear any conversation between § 87(2)(b) and other individuals. PO Jefferson did not remember PO Franklin asking § 87(2)(b) any questions while inside the McDonald's. PO Jefferson confirmed that during this incident, his only purpose for going into the McDonald's was to

observe § 87(2)(b) § 87(2)(b) never later explained what he was doing inside the McDonald's. Neither officer responded to § 87(2)(b) inside the McDonald's, because after cursing, he immediately walked out the door (06 Board Review).

A level one request for information is a general, nonthreatening encounter in which an individual is approached for an articulable reason and asked briefly about his or her identity, address, destination, or reason for being in the area. A request for information must be supported by an objective credible reason, not necessarily indicative of criminality. Once an officer's questions become extended and accusatory and the officer's inquiry focuses on the possible criminality of the person approached, the encounter has become a level two common-law inquiry, that must be supported by founded suspicion of criminality afoot (People v. Hollman, 79 N.Y. 2d 181 (1992)) (17 Board Review).

An officer does not have founded suspicion to question an individual he had previously arrested for burglary when he observed the individual looking at houses in a burglary prone area (People v. Johnson, 64 NY 2d 617(1984)) (14 Board Review).

§ 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] Therefore, it is recommended that

Allegation A be *unsubstantiated*.

Allegation B –Abuse of Authority: Police Officer James Franklin issued a summons to

§ 87(2)(b)

§ 87(2)(b) said that PO Franklin and PO Jefferson followed him out of the McDonald's and down the sidewalk toward Lafayette Street and across Canal Street. While following § 87(2)(b) PO Franklin continued to talk to him and so § 87(2)(b) yelled out, "Do not talk to me! What happened? Why are you talking to me?" § 87(2)(b) said that more than six bystanders, including several street vendors, were watching when he yelled. § 87(2)(b) said he was fearful of PO Franklin following him and thought the officer might harass him based on his past interactions. Therefore, § 87(2)(b) yelled in order to attract the attention of bystanders so they would witness whatever PO Franklin was about to do. PO Franklin told PO Jefferson to bring § 87(2)(b) back

across the street and so PO Jefferson grabbed § 87(2)(b)'s arm and escorted him in front of the TD bank. PO Franklin told PO Jefferson that he was going to write § 87(2)(b) a summons. The officers had § 87(2)(b) stand against the wall of the TD bank while they stood closer to Canal Street. PO Franklin asked for and received § 87(2)(b)'s ID and proceeded to write him a summons (04 Board Review).

PO Franklin said that when he questioned § 87(2)(b) inside the McDonald's, § 87(2)(b) immediately replied with obscenities including, "Go fuck your mother!" and "You mother fucker!" § 87(2)(b)'s cursing drew the attention of some of the 10 people inside the McDonald's, but PO Franklin did not recall any other individuals getting involved in his interaction with § 87(2)(b). PO Franklin did not recall PO Jefferson saying anything at this point in the incident. § 87(2)(b) was always free to leave during his conversation with PO Franklin inside the McDonald's. § 87(2)(b) did not tell PO Franklin that he did not want to talk to him inside the McDonald's. PO Franklin said that he, PO Jefferson, and § 87(2)(b) walked out of the McDonald's. PO Franklin could not remember who walked out first or if they all walked out together. Up to this point, PO Franklin had not intended to stop § 87(2)(b). However, § 87(2)(b) continued to curse outside the McDonald's at PO Franklin and about police in general. § 87(2)(b)'s cursing was drawing the attention of numerous pedestrians on Canal Street, which is always busy. The pedestrians turned around to see what was going on and had shocked expressions on their faces over what § 87(2)(b) was saying. These individuals were approximately five feet from the officers, but did not need to be instructed to back up and none of these individuals got involved in the interaction with § 87(2)(b). At that point, PO Franklin decided to issue § 87(2)(b) a C-summons for disorderly conduct and asked for his ID. Aside from cursing, § 87(2)(b) was not doing anything else that he could be summonsed for. PO Franklin did not recall whether § 87(2)(b) said that he did not want to talk to him between leaving the McDonald's and the point where he issued § 87(2)(b) his summons (05 Board Review).

PO Jefferson said that § 87(2)(b) yelled, "Fuck you! Fuck your mother! Go fuck your mother!" directed mostly at PO Franklin, but also at PO Jefferson while still inside the McDonald's. PO Jefferson said that § 87(2)(b)'s behavior inside the McDonald's rose to the level of disorderly conduct in PO Jefferson's opinion, but he was walking outside, so there was no need to take action. PO Jefferson also did not remember whether he and PO Franklin left before, after, or at the same time as § 87(2)(b). § 87(2)(b) continued to shout obscenities at the officers while on the busy public sidewalk outside the McDonald's in a loud, boisterous voice. § 87(2)(b)'s shouting was drawing the attention of pedestrians, but PO Jefferson could not be sure of how many because the sidewalk is always crowded. PO Jefferson did not remember hearing people react to § 87(2)(b)'s cursing, which lasted under two minutes. This cursing and yelling was disorderly because § 87(2)(b) was causing a disturbance in a public place. § 87(2)(b) pointed at the officers while yelling, but did not make any physical threats or obscene gestures with his body. PO Jefferson approached § 87(2)(b) and said, § 87(2)(b) you know the drill. You can't walk down the sidewalk cursing people out. You're going to get a summons for that." § 87(2)(b) continued shouting curses, "Fuck you! Fuck Frankie! He can go fuck his mother!" PO Jefferson decided to not walk away when § 87(2)(b) started cursing because the obscenities were directed at him and PO Franklin. The officers could not leave a loud, disorderly person on the sidewalk without correcting the situation, because someone might call 911 and they had to ensure that § 87(2)(b)

§ 87(2)(b) did not start an incident with any bystanders. PO Franklin then told § 87(2)(b) “Alright, well now you’re going to receive a C-summons.” PO Franklin only decided to summons § 87(2)(b) after PO Jefferson spoke to him and § 87(2)(b) continued cursing. PO Jefferson agreed with PO Franklin’s action. PO Jefferson said that it was rare for officers to issue individuals a C-summons for cursing and that it was only done when the cursing was severe as in this case. This cursing all took place in the same area in front of the McDonald’s. § 87(2)(b) did make statements to PO Franklin along the lines of, “I don’t want to talk to you! Don’t talk to me! I don’t want to speak to you!” § 87(2)(b) was willing to speak to PO Jefferson (06 Board Review).

C-summons# § 87(2)(b) issued to § 87(2)(b) by PO Franklin on July 7, 2016 lists § 87(2)(b) s offense as “Disorderly Conduct-Obscene Language.” The description of allegations says that PO Franklin observed § 87(2)(b) loudly state offensive and obscene language causing public alarm and annoyance in a public place. The summons also said that one of § 87(2)(b) s statements was, “Go fuck your mother. You mother fucker” (13 Board Review).

New York State Penal Law sub section 240.20 says that a person is guilty of disorderly conduct when he makes unreasonable noise or uses abusive or obscene language in a public place (08 Board Review).

A person is not guilty of disorderly conduct when they shout obscenities at police officers and thereby provoke looks of surprise and curiosity from bystanders. A person is only guilty of disorderly conduct when the situation extends beyond the exchange between the individual disputants to a point where it becomes a potential or immediate public problem (People v. Gonzalez, 2015 NY LEXIS 1433; 2015 NY Slip Op 05515) (09 Board Review).

Isolated statements using course language to criticize the actions of a police officer, unaccompanied by provocative acts or other aggravating circumstances, will rarely afford a sufficient basis to infer the presence of the public harm mens rea necessary to support a disorderly conduct charge (People v. Fassigner, 42 Misc. 3d 407 (Auburn City Ct. 2013)) (10 Board Review).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be *substantiated*.

Allegation C –Abuse of Authority: Police Officer James Franklin threatened to arrest § 87(2)(b)

§ 87(2)(b) said that PO Franklin began to speak to him while handing him the summons with his ID. § 87(2)(b) did not remember PO Franklin’s specific statement, but said that it was along the lines of saying he had to cooperate. § 87(2)(b) told PO Franklin that if he was done writing the summons that he should give it to § 87(2)(b) and go. PO Franklin replied that § 87(2)(b) had to wait and speak with him, but did not specify about what. § 87(2)(b) told PO Franklin again that he did not want to talk to him and that if he was finished writing the summons to just give it to him so that he could leave. § 87(2)(b) did not yell these statements, but was talking in a calm, normal tone of voice. PO Franklin allegedly replied, “If you keep talking, I’m going to arrest you” (04 Board Review).

Upon reviewing ATM security footage from the TD Bank Lobby, at 00:04 a uniformed male officer, later identified by the investigation as PO Franklin, is observed through the front windows walking east down toward Lafayette Street and into the street behind a vendor stand. At 00:07 a male wearing blue jeans, a white shirt, and white Kufi hat, later identified by the investigation as § 87(2)(b) is observed walking east on Canal Street and then stop in front of the TD Bank. The view of § 87(2)(b) is blocked by a pillar next to the window. At 00:11, a uniformed male officer, the investigation later identified as PO Jefferson, is observed standing next to § 87(2)(b) and appears to speak to him while making various hand gestures. PO Jefferson is first on § 87(2)(b)’s side and then appears to move in front of § 87(2)(b) where he is partially blocked by the pillar. At 00:24 PO Franklin walks back on screen and stands on the street next to the vendor cart. PO Franklin is looking down and appears to be writing something. At 06:48 § 87(2)(b) makes hand gestures and PO Jefferson appears to be having a conversation with him. At 07:17 § 87(2)(b)’s hand gestures become quicker. At 08:48 a teenage Asian female wearing a white t-shirt and blue jean shorts and carrying a backpack walks into the lobby. At 09:01 the female appears to look briefly toward PO Jefferson and § 87(2)(b) who are still having a conversation, and then turns back toward the ATM while looking in her backpack. At 09:24, PO Franklin is walking onto the sidewalk and standing next to § 87(2)(b). At 09:28, PO Franklin appears to make a gesture with his hand while speaking to § 87(2)(b). At 09:36 the female, who was texting on her phone, abruptly turns around and appears to briefly look at the officers and § 87(2)(b) before manipulating her wallet. At 09:45 the female turns fully around and appears to face the officers and § 87(2)(b) while manipulating her backpack. At 10:01 § 87(2)(b)

§ 87(4-b), § 87(2)(g)

[REDACTED]

[REDACTED]

Squad: 3

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date